

MEMORANDUM OF UNDERSTANDING
BETWEEN
THE ANTI-CORRUPTION AND CIVIL RIGHTS COMMISSION
OF THE REPUBLIC OF KOREA
AND
THE OMBUDSMAN REPUBLIC OF INDONESIA
ON PROMOTING OVERSEAS NATIONALS' RIGHTS AND RESOLVING
THEIR
DIFFICULTIES

The Anti-Corruption and Civil Rights Commission of the Republic of Korea and the Ombudsman Republic of Indonesia (hereinafter referred to as "the Sides");

Actively resolving difficulties and inconvenience frequently suffered by their overseas nationals and businesses in the counterpart country;
Seeking common interests that may be represented by the Sides for the promotion of the rights of their overseas nationals;

Acting in accordance with the prevailing laws and regulations of their respective countries;

Have reached the following understanding:

Paragraph 1

Objective

The objective of this Memorandum of Understanding (hereinafter referred to as the "MOU") is to seek common interests that may be represented by the Sides and build a cooperation system in order to resolve difficulties and inconvenience frequently experienced by the overseas nationals in their lives, employment, education and visa issues in the counterpart country.

Paragraph 2

Principles

1. The Sides will handle, with careful consideration, complaints filed by overseas nationals of the counterpart country. The Sides, even when transferring the complaints to relevant agencies of their

countries, will receive the results of the complaints from such agencies, and notify them to the overseas nationals who filed the complaints. In addition, the Sides may file the complaints received from their overseas nationals with the counterpart country by mail or e-mail.

2. The Sides, to protect overseas nationals of the other Side, may, if necessary, visit businesses, workers, and multi-cultural families of the counterpart country, and provide counseling and other services to resolve their difficulties. The Sides will consider opening a "window for civil petitions exclusively for the overseas nationals of the counterpart country" in their respective ombudsman organizations, which is intended to receive complaints and give feedback in their counterpart's national languages. To this end, the Korean Side will, if necessary, provide the Indonesian Side with necessary information technology.

3. Overseas nationals in the counterpart country may request the Sides to provide them with information on the status of their complaints, and the Sides will respond to such requests as faithfully as possible.

Paragraph 3

Areas of Cooperation

1. The areas of cooperation under this MOU may include, within the available budget and personnel of the Sides, the following:

- (a) Opening a window for civil petitions exclusively for overseas nationals of the counterpart country;
- (b) Exchanging complaint-related policies, experiences and human resources;
- (c) Conducting joint investigation and research;
- (d) Organizing bilateral workshops or seminars; and
- (e) Other areas of cooperation as deemed necessary.

2. The Sides, in pursuing cooperation with international ombudsman organizations, academic institutions and private organizations, will actively communicate the current status and the achievements of

collaborative activities under this MOU to the public.

Paragraph 4

Implementation Mechanism

The Sides will hold a high-level ombudsman policy meeting to evaluate their performance in resolving difficulties and inconvenience of overseas nationals in the counterpart country, and to discuss other cooperation issues. Each Side will appoint its liaison officials to facilitate the communication between each other.

Paragraph 5

Expenses

The Sides will share the expenses of programs, projects and activities under this MOU, and may discuss the way of sharing such expenses.

Paragraph 6

General Provisions

1. Cooperation activities under this MOU will be conducted by the Sides in accordance with the respective laws and regulations of the two countries.
2. This MOU is not intended to create any legally binding rights and obligations.
3. The Sides will not transmit information obtained from the other Side under this MOU to a third party without written consent of the other Side.

Paragraph 7

Entry into Effect, Duration, Termination and Amendment

1. This MOU will come into effect on the date of its signature.
2. This MOU will be effective for three (3) years. The validity of this MOU may be extended for the successive period of three (3) years upon mutual written consent of the Sides.
3. Either Side may terminate the validity of this MOU at any time

informing the other Side, in writing, of its intention to terminate the MOU. The MOU will be terminated six

(6) months after the date of such notification.

4. This MOU may be amended with the mutual written consent of the Sides.

Signed in duplicate at Jakarta on the 1st day of 2010, in the English language.

FOR THE ANTI-CORRUPTION AND CIVIL
RIGHTS COMMISSION
OF THE REPUBLIC OF KOREA

FOR THE OMBUDSMAN
REPUBLIC OF INDONESIA